

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zev Levavi	Team: Squad #05	CCRB Case #: 201412600	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 12/21/2014 2:40 AM	Location of Incident: 164th Street and 84th Road	18 Mo. SOL 6/21/2016	Precinct: 107
Date/Time CV Reported Sun, 12/21/2014 3:53 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 12/21/2014 3:53 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Choi	24275	941554	107 PCT
2. POM John Ambrosino	30074	949998	107 PCT
3. POM Kenneth Clausey	06058	917435	107 PCT
4. SGT Keith Brand	01722	924978	107 PCT
5. Officers			107 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Victor Adames	07823	923485	107 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Kevin Choi	Force: PO Kevin Choi used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Kevin Choi	Discourtesy: PO Kevin Choi spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Kenneth Clausey	Discourtesy: PO Kenneth Clausey spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM John Ambrosino	Discourtesy: PO John Ambrosino spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . Officers	Force: Officers struck § 87(2)(b) and § 87(2)(b) with their batons.	E . Officer(s) Unidentified
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint via the CCRB call processing system on December 21, 2014, on behalf of § 87(2)(b) and § 87(2)(b) (encl. 10A-C). § 87(2)(b) is § 87(2)(b)'s son and § 87(2)(b) and § 87(2)(b) are friends of § 87(2)(b). § 87(2)(b) did not witness the incident.

Shortly before 3:00 a.m. on December 21, 2014, § 87(2)(b) and his friends, § 87(2)(b) and § 87(2)(b) were involved in a physical altercation with a group of approximately seven to eight unidentified individuals outside of Traditions Bar, located at 164th Street and 84th Road, in Queens. Almost immediately, several uniformed officers in an unspecified number of marked vehicles arrived outside Traditions Bar.

An officer identified by the investigation as PO Kevin Choi of the 107th Precinct came up to § 87(2)(b) and allegedly pushed him to the ground (**Allegation A**). § 87(2)(b) fell on his right elbow and sustained scratches as a result. PO Choi allegedly yelled at § 87(2)(b) to “get the fuck out of here” twice (**Allegation B**). § 87(2)(b) attempted to explain the situation, but PO Choi allegedly said, “I don’t care what the fuck is going on. Shut the fuck up and get the fuck out” (**subsumed in Allegation B**).

§ 87(2)(b) and § 87(2)(b) saw § 87(2)(b) arguing with PO Choi and they approached. All three of them then walked to the opposite side of 164th Street and proceeded down the street towards Union Turnpike, away from the bar. PO Choi and two additional officers, identified by the investigation as PO John Ambrosino and PO Kenneth Clausey, also from the 107th Precinct, formed up in a line behind § 87(2)(b) and § 87(2)(b) and blocked their path.

PO Ambrosino and PO Clausey allegedly ordered § 87(2)(b) to “get the fuck out of here” (**Allegations C and D**). PO Choi, PO Ambrosino, and PO Clausey took out their batons and allegedly struck § 87(2)(b) and § 87(2)(b) (**Allegation E**). § 87(2)(b) was unable to specify which officer allegedly struck him, § 87(2)(b) and § 87(2)(b). § 87(2)(b) was struck once in his ribs and once on his arm. § 87(2)(b) was struck in the face, which caused bruising, and § 87(2)(b) was struck in the arm, which caused bruising as well. § 87(2)(b) did not seek any medical treatment for his injuries.

§ 87(2)(b) took out his cell phone and told the officers he was going to record the incident. However, § 87(2)(b) did not realize that his phone was in camera mode and he accidentally took a photograph of the ground. PO Choi, PO Ambrosino, and PO Clausey stopped using their batons and walked back towards their vehicles, which were parked in front of Traditions Bar. § 87(2)(b) and § 87(2)(b) walked to the corner of 164th Street where it meets the Grand Central Parkway and left the scene in a friend’s vehicle. § 87(2)(b) and § 87(2)(b) were not arrested or issued summonses as a result of the incident.

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation due to § 87(2)(b)'s injuries.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- A FOIL request for a notice of claim filed regarding this incident was submitted on June 26, 2015. The results will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- This is the first complaint in which § 87(2)(b) and § 87(2)(b) have been involved (encl.7-9)).
- PO Choi has been a member of service for 8 years and there are no substantiated allegations against him (encl. 2). § 87(2)(g)
- PO Clausey has been a member of service for 18 years and there are no substantiated allegations against him (encl.3). § 87(2)(g)
- PO Ambrosino has been a member of service for 3 years and this is the first CCRB case in which he is named as a subject officer (encl. 4). § 87(2)(g)
- Sgt. Brand has been a member of service for 15 years and there are no substantiated allegations against him (encl. 5).

Potential Issues

- The investigation was delayed due to a gap in time between § 87(2)(b)'s phone statement and the receipt of his signed and notarized verification form. § 87(2)(b) provided a phone statement on December 26, 2014, and was subsequently sent a verification form via email with instructions to sign, notarize, and return the verification form promptly. § 87(2)(b) was unable to provide a statement at the CCRB because he attends college in New Hampshire and he did not have plans to return to New York when the undersigned attempted to schedule an appointment. On February 3, 2015, § 87(2)(b) called the undersigned back in response to several voicemail messages regarding the verification form. § 87(2)(b) stated that he had sent a signed and notarized verification form to the CCRB 10 days prior. The undersigned informed § 87(2)(b) that he had not received the verification form and sent him a second verification form via email. The CCRB received the signed and notarized verification form in the mail on February 12, 2015.
- Fieldwork was conducted twice in an attempt to locate and obtain any video footage for this case. On December 23, 2014, the field team went to at the intersection of the Grand Central Parkway and Parsons Boulevard, in Queens, which was the incident location initially reported by § 87(2)(b). The field team was unable to locate any video cameras in the vicinity that could have captured the incident. Upon further investigation, the incident location was discovered to be Traditions Bar. On January 7, 2015, the field team visited Traditions Bar, but the establishment was closed. Furthermore, the field team did not observe any external security cameras at the location. The fieldwork team learned from adjacent business that the bar is only open from Friday at 6:00 p.m. through Sunday. The field team left a subpoena for video footage on the front door of the bar. Subsequent attempts to contact Traditions Bar were unsuccessful and the bar never contacted the CCRB regarding this subpoena left on the front door.
- § 87(2)(b) identified § 87(2)(b) and § 87(2)(b) as victims of force. § 87(2)(b) provided a brief phone statement regarding the incident, but he declined to provide a sworn statement. § 87(2)(b) confirmed that he was the victim of force but he

failed to cooperate with the investigation. Therefore, the investigation was unable to obtain sworn statements from the other two victims named in this case.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) described the officer who pushed him to the ground, initially told him to “get the fuck out” and to “shut the fuck up,” as an Asian male in his late 20s or early 30s who is 5’11” tall, weighs 170 to 180 pounds, with black hair. PO Choi’s MOS photograph reflects that he is a § 87(2)(b) Asian male who is § 87(2)(b) with black hair, which generally matches § 87(2)(b)’s description (encl. 12A).
- Furthermore, as per the 107th Precinct roll call, PO Choi was the only Asian male officer with a uniformed assignment that likely responded to the incident location (encl. 18A-F). PO Choi failed to prepare a memo book entry regarding this incident, but he worked with PO Ambrosino for the entirety of his tour on the date of incident and PO Ambrosino’s memo book confirmed that he responded to the call for backup at Traditions Bar (encl. 13B-E). § 87(2)(g)
- § 87(2)(b) described the other two officers who used profanity as follows: one is a white male in his late 30s to early 40s, who is bald and chubby, and the other is a bald white male who is taller than PO Choi and the bald and chubby officer.
- PO Clausey’s MOS photograph reflects that he is a § 87(2)(b)-old white male who is § 87(2)(b) and who is mostly bald (encl. 14A).
- PO Ambrosino’s MOS photograph reflects that he is a § 87(2)(b)-old white male who is § 87(2)(b), who is partially bald (encl. 13A).
- The SPRINT EVENT related to this incident reflected that 107 Precinct sector patrol C as the unit that called for backup at the incident location (encl. 17B). The 107th Precinct roll call identified PO Clausey and PO Adames as the two officers assigned to patrol sector C date of incident, and PO Clausey’s memo book confirmed that he was at the scene (encl. 14B-D).
- § 87(2)(g)
- Although § 87(2)(b) alleged that PO Choi, PO Clausey, and PO Ambrosino all used their batons to strike him and § 87(2)(b) and § 87(2)(b) he could not specify which officer hit who. Furthermore, § 87(2)(b) and § 87(2)(b) did not cooperate with the investigation, so they could not provide statements to clarify which officers specifically struck them. § 87(2)(g)
- § 87(4-b) § 87(2)(g)

Allegation A – Force: PO Kevin Choi used force against § 87(2)(b)

Allegation B – Discourtesy: PO Kevin Choi spoke discourteously to § 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) almost immediately after he was punched in the back of the head by an unidentified civilian with whom his friends were arguing, several marked NYPD vehicles pulled up to the scene. PO Choi approached § 87(2)(b) and allegedly pushed him to the ground. When § 87(2)(b) asked PO Choi why he pushed him, PO Choi allegedly yelled at § 87(2)(b) to “get the fuck out of here.” § 87(2)(b) tried to explain himself to PO Choi, but PO Choi said, “I don’t care what the fuck is going on. Shut the fuck up and get the fuck out.”

PO Choi did not recall this incident and he denied that he responded to PO Clausey’s and PO Adames’ call for backup outside Traditions Bar on the date of incident. PO Choi is not familiar with anyone named § 87(2)(b) and denied using force or profanity against any civilians outside of Traditions Bar on the date of incident.

However, as discussed in the officer identification section of this report, PO Ambrosino confirmed that he and PO Choi responded to the call for backup and noted such in his memo book. PO Ambrosino stated that when he and PO Choi arrived at Traditions Bar, the crowd was under control. PO Ambrosino and PO Choi were only at the scene for five minutes and they did not exit their vehicle or take any police action during that time. PO Ambrosino did not observe PO Choi push § 87(2)(b) to the ground, nor did he hear PO Choi use any profanity towards him.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A** and **B** be closed as **unsubstantiated**.

Allegation C – Discourtesy: PO Kenneth Clausey spoke discourteously to § 87(2)(b)

Allegation D – Discourtesy: PO John Ambrosino spoke discourteously to § 87(2)(b)

§ 87(2)(g)

According to § 87(2)(b) as he walked along 164th Street towards Union turnpike with § 87(2)(b) and § 87(2)(b) PO Clausey and PO Ambrosino ordered him to “get the fuck out of here.” § 87(2)(b) alleged that the profanity was used towards him alone. § 87(2)(b) and § 87(2)(b) did not cooperate with the investigation and therefore could not confirm or deny whether PO Clausey and PO Ambrosino used profanity towards § 87(2)(b)

According to PO Clausey, he only interacted with one unidentified Hispanic male at the scene, before PO Adames inadvertently sprayed PO Clausey with pepper spray, after which PO Clausey took no further police action. PO Clausey is not familiar with anyone named § 87(2)(b) PO Clausey denied ordering anyone to “get the fuck out of here” and he denied using any profanity towards any civilians at the scene. PO Clausey did not hear an officer order anyone to “get the fuck out of here,” nor did he hear an officers use profanity. Additionally, PO Adames did not hear any officers make the above statement, nor did he hear any officers use profanity towards civilians.

PO Ambrosino stated that he and PO Choi remained in their vehicle for the duration of their time at the scene. PO Ambrosino is not familiar with anyone named § 87(2)(b) and he denied ordering any individual by that name to “get the fuck out of here.” PO Ambrosino saw PO Clausey at the scene, but their only interaction was when PO Clausey gave him thumbs up to indicate that everything was under control. PO Ambrosino denied using any profanity at the scene, and he did not hear another officer swear at anyone.

§ 87(2)(g)

Therefore, it is recommended that **Allegations C and D** be closed as **unsubstantiated**.

Allegation E – Force: Officer struck § 87(2)(b) and § 87(2)(b) with their batons.

§ 87(2)(g)

According to § 87(2)(b) as he walked away from the crowd towards Union Turnpike with § 87(2)(b) and § 87(2)(b) PO Choi, PO Clausey, and PO Ambrosino approached them from behind. The officers then formed a line, took out their batons, and struck § 87(2)(b) and § 87(2)(b) § 87(2)(b) was struck once on the arm and once in his ribs, which caused bruising to both areas. § 87(2)(b) was struck in the face and § 87(2)(b) was struck on his arm, which caused bruising to both. However, § 87(2)(b) was unable to specify which officer or officers struck him, and he was unable to specify which officers struck § 87(2)(b) or § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) did not cooperate with the investigation, and thus were unable to clarify which officers struck them and caused their injuries. § 87(2)(b) was unable to provide documentation or photographic evidence of their injuries either.

PO Choi, PO Clausey, and PO Ambrosino denied striking any civilians with their batons outside of Traditions Bar on the date of incident. PO Choi did not recall the incident, PO Clausey stated that he was not equipped with a baton on the date of incident, and PO Ambrosino denied that he or PO Choi exited their vehicle while at the scene.

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Officers unidentified**.

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Pod: 5

Investigator:	_____	<u>Zev Levavi</u>	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date